

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: May 27, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

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**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

9:30 a.m. CALENDAR

LINE

1

**IN THE MATTER OF THE AKELA NANG XAYASOUNTHONE TRUST
FPR045944**

Petition to Approve Eighth Account and Report of Trustee From 12/01/2023, Through 11/30/2025, To Confirm Trust Advisory Committee, Member's and Trustee's Fees, and To Approve Attorney's Fees

PREGRANT ORDER

The court on its own motion continues this hearing to July 20, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issue:

Petition, ¶17: It is unclear why none of the State Agencies were listed in the petition and why there is no proof of service showing that they were given notice of this proceeding.

LINE

2

**IN RE THE ESTATE OF NETTIE R. HINES, DECEASED
FPR047817**

First and Final Report of Administrator, Petition for Final Distribution, For Payment of Statutory Attorney's Fees, and Finding of Equitable Assignment; Waiver of Accounting and Waiver of Personal Representative's Fees

PREGRANT ORDER

The court on its own motion continues this hearing to July 22, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Solano County Tax Collector: The petition states that the claim filed by the Solano County Tax Collector has been resolved by the previous administrator's rejection. However, there is no proof of service to show notice was given as required by Probate Code section 9250.
2. Statutory Attorney Fees: The petitioner seeks statutory attorney fees for Attorney Thomas Healy only. However, the previous administrator was also represented by Attorney Eugene Schneider and Timothy Walsh. While the petitioner states that both previous attorneys have waived compensation, no supporting documents have been provided.
3. Disclaimers: The court will not consider any disclaimers filed in 2016 submitted by the previous administrator who was removed by the court. The previous disclaimers

were filed in support of the petition for final distribution by the removed administrator and such petition was denied. The petitioner must file any supporting documents with the instant petition before the court.

4. Assignments: The petitioner requested that the court interpret the disclaimers as assignments. The court does not intend to grant this request. If the petitioner intends to seek assignments rather than disclaimers, the petitioner must file assignments by each heir assigning their respective interest to the petitioner.

5. Deceased Heir, Phillip Hines's Interest: The petition seeks to distribute the deceased heir's interest to his siblings. However, the court does not intend to grant this request. The distribution must be made through the proper method authorized by probate statutes. (See Prob. Code §§11801, 11802, et seq.)

6. Waiver of Accounting: The petition seeks to waive the accounting. However, there are no waivers of accounting by all heirs on file. Absent waivers by all beneficiaries, the petitioner must provide an accounting. Account Waivers must conform to Solano County Local Rule 7.71 or the petitioner may use Local Form 7001-PR.

7. Omnibus: The prayer seeks to distribute any remaining estate not known or discovered in the future to be made to the petitioner. However, the decedent left a will which provided equal shares for her seven issues. The previous disclaimer only disclaimed interest in the real property, not any other property and is not valid. If the petitioner seeks this relief, the heirs must assign any and all of their future interest to her in an assignment filed with the court under oath.

8. Caption: Counsel is reminded that in probate matters, the "title of each pleading and of each proposed order must clearly and completely identify the nature of the relief sought or granted." (Cal. Rules of Court, Rule 7.102.) Here, the caption on the petition did not mention of denial of statutory compensation to the previous administrator.

LINE

3

IN RE THE ESTATE OF BETTY LOU JONES, DECEASED
PR23-00068

First and Final Report of Administrator; Waiver of Account; Petition for Final Distribution; For Allowance of Compensation to Administrator; Reimbursement of Expenses; Payment of Statutory Attorney's Fees; and Reimbursement of Costs

PREGRANT ORDER

The court on its own motion continues this hearing to July 22, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Pursuant to Probate Code section 12200(a), a personal representative is to file either a petition for final distribution or a status report within one year of the date letters are issued if no estate tax return is required, and within eighteen months of the date letters are issued if an estate tax return is required. As the estate is of an insufficient size to require an estate tax return, the petition for final distribution or a status report was due by August 14, 2024. No petition was filed until April 10, 2026. The court notes that a Status Report was filed with the court to continue the administration of the estate in 2025, but not placed on calendar as required by Probate Code §12201, et seq. There was no Notice of Hearing with proof of service was filed with the court and no explanation was given for the delay.
2. Statutory Fee Calculation: The statutory fee calculation did not include any losses for the sale of real property. (See Prob. Code §10810 (b).) It appears that the real property was valued at \$585,000, but sold for \$550,000. Court Staff calculates the statutory fee to be \$14,067.78 and not \$14,767.78.
3. There was no value provided for real property listed in Attachment 2 of the inventory and appraisal filed on March 5, 2024.

LINE

4

IN RE THE ESTATE OF SANDRA J. PERKINS, DECEASED PR25-00033

First and Final Report of Administrator on Waiver of Account, Petition for Final Distribution and Allowance of Compensation to Administrator and Attorneys for Statutory Services

PREGRANT ORDER

The court on its own motion continues this hearing to July 22, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, ¶18-Sale of Real Property: The petitioner shall provide a copy of the seller's closing statement for the court's review and consideration.
2. Petition, ¶27-Reserve for Closing Expenses *Advisory Only*: The petitioner seeks a reserve of \$5,000. However, the court will require that the petitioner attach an informal accounting to the ex parte petition for final discharge and order.

3. Petition, ¶28 – Intestate Heirs: The petition and order for distribution shall include the minor’s age and birthdate. (Solano Local Rule 7.66 d(1).)

4. Proposed Distribution, Exhibit E: The specific details of the proposed distribution must be provided in the petition and the proposed order. A description by reference to the inventory on hand to be distributed in fractions, is not acceptable. (Solano Local Rule 7.66 b.) It is unknown what the value of each distribution is and the type of asset to be distributed to each heir. The petitioner shall provide a summary of account for the value at the beginning of the accounting and the ending value of the accounting.

5. Proposed Distribution to Minor: The petition did not state who the minor’s distribution would be distributed to, and provide the name, address and fiduciary capacity of the recipient in the petition and order. (Solano Local Rule 7.66 d.) The petitioner shall clarify if there is a Guardianship for the minor and provide letters for the court’s review, if applicable.

LINE

5

**IN RE THE ESTATE OF GREGORY RAMON THOMPSON, DECEASED
PR25-00631**

Second Amended Petition for Letters of Administration

PREGRANT ORDER

This matter was continued from October 31, 2025, January 26, 2026, April 22, 2026, May 6, 2026 and May 13, 2026 to allow the petitioner to address issues with the amended petition. The court notes a second amended petition was filed on May 20, 2026.

The court on its own motion continues this hearing to July 23, 2026, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues as they relate to the second amended petition:

1. Second Amended Petition, Caption: The caption does not seek full authorization to administer under the Independent Administration of Estates Act as indicated in the petition on item 2.c. The petitioner shall clarify if he is seeking full or limited authority and mark the appropriate box in the caption.

2. Second Amended Petition, Notice: Amended petitions replace all prior petitions for all purposes. (Cal. Rules of Court, Rule 7.3(3).) Notice of amended petitions must be given in the same manner as notice for original petitions. (Cal. Rules of Court,

Rule 7.53(a).) There is no Notice of Hearing for the Second Amended Petition and proof of service to show proper notice has been given.

3. Second Amended Petition, item 2.b: The name of the proposed administrator was not provided.
4. Second Amended Petition, item 9: The petition must also be signed by the self-represented litigant on the attorney signature line. (Probate Code §§ 1020, 1021; California Rules of Court, Rule 7.103.)
5. Second Amended Petition, item 3.d: The petitioner must provide an estimated value for the estate. The previous documents in the court file indicate there is a life insurance policy payable to the estate. The petitioner shall provide the value for the policy.
6. The completed Duties and Liabilities form filed on May 20, 2026 is missing the phone number of the proposed representative. (Prob. Code § 8404.)

LINE

6

IN RE THE ESTATE OF MYRNA C. BERNABLE, DECEASED
PR26-00216

Petition to Determine Succession to Real Property

PREGRANT ORDER

The court on its own motion continues this hearing to July 23, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, item 5: Either “intestate” or “testate” must be marked.
2. Petition, item 9.a.(3): Either “issue of a predeceased child” or “no issue of a predeceased child” must be marked.
3. Petition, item 13: This item must be answered.
4. Petition, item 14: Either “are listed below” or “are listed in “Attachment 14” must be marked. The relationship to the decedent for each person listed must also be provided.
5. The petitioner used an outdated form and must use the updated form. While the petitioner may file an amended petition to resolve the issues listed above, any amended petition must be filed in the most recent Mandatory Judicial Council Form DE-310. The updated form also requires Mandatory Judicial Council Form DE-300 to be attached to the petition.

LINE

7

**IN THE MATTER OF THE THRELFALL FAMILY TRUST
PR26-00218**

Petition for Instructions, Modification of Trust

PREGRANT ORDER

The court on its own motion continues this hearing to June 18, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issue:

Schedule A of the trust instrument was not attached to the petition. The petitioner shall provide a copy for the court's review and consideration.

LINE

8

**IN RE THE ESTATE OF KATHRYN TAGG GRAHAM, DECEASED
PR26-00225**

Petition to Determine Succession to Primary Residence

PREGRANT ORDER

The court on its own motion continues this hearing to July 23, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, item 8.c: The attached appraisal was not completed by the probate referee appointed for the county and is required. (Prob. Code §§8901, 8902, 13152(b).)
 2. The date of death for the decedent's mother and father must be provided.
 3. No proposed order was lodged with the court.
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